

Week 5, Exercise 1 | Privacy and data protection

I chose LinkedIn for the example service. Since I have created an account and a public profile, LinkedIn has a lot of my personal data, including my full name, date of birth and work and education information.

1. I think that the basic legal requirements for my consent are not fully in line with the GDPR. The basic information that LinkedIn requests and processes, like names, work experience etc. is information that is needed for the service to fulfill its purpose (connecting workers and companies), and I consider to have consented to this, making the data processing lawful due to GDPR Article 6 (1) a). The LinkedIn cookie settings (<https://www.linkedin.com/mypreferences/d/member-cookies>) also allow the user to turn on or off cookies related to e.g. sharing your data with advertisers. However, there is a setting related to LinkedIn using your personal data and e.g. public messages to train their Generative AI, and this is opt-out (so on by default). I don't think this is in line with the GDPR Article 6 (1) a): "the data subject has given consent to the processing of his or her personal data for one or more specific purposes". The consent I have given here should concern the basic features of LinkedIn, not Generative AI Improvement. There might be other similar opt-out settings which I have not found.

2. I filed a right-to-access request to LinkedIn, but this was done about 12 hours before the exercise deadline so I won't be able to receive a response in time. I chose to receive the largest amount of data that was possible, which includes "connections, verifications, contacts, account history, and information we infer about you based on your profile and activity". LinkedIn Help (<https://www.linkedin.com/help/linkedin/answer/a1339364/>) lists a lot of different types of data the response will contain, as well as how long the request is expected to take. This seems to be in line with Article 15 (1), which e.g. says that the user should have information about the categories of personal data processed.

I did not find a clear list of any third party companies or services that LinkedIn might give my personal data to. This might not be in line with GDPR Article 13 (1) e), which states that LinkedIn should clearly state "the recipients or categories of recipients of personal data, if any". Chapter 5.4 in LinkedIn's privacy policy (<https://www.linkedin.com/legal/privacy-policy>) does state that "We currently do not share personal data with third parties for their direct marketing purposes without your permission." However, I'm not sure if data is shared for purposes other than direct marketing, or what kind of data is shared. For my rights as a data subject to be respected, I think that LinkedIn should at least show information related to data processing, sharing etc. in a clearer way.

3. Anonymization of personal data means that the data is modified in a way where the person can no longer be identified, and is non-reversible. Pseudonymized personal data is also data modified in a way where the person cannot be identified, but it can still be reverted into a form where the person can be identified, with the use of some other data. For example, getting personal data of a person and changing their name to random characters, but then also creating a table which allows someone to look up the original name using the randomized name as a key can be considered pseudonymization, since anyone that gets a hold of both the personal data and the table can identify which person the data belongs to.